

(referring to T 952/92, OJ 1995, 755; T 406/86 OJ 1989, 302; T 390/88; G 1/92; see also T 370/02).

In T 947/99 the alleged public prior use concerned a visit to an ice-cream factory. Although it had not been established that a feature of the manufacturing process had been explicitly explained to the visitors, the board decided that information about the procedure had been publicly disclosed. The board observed that, in accordance with the principles set out in G 1/92, it was the fact that direct, unlimited and unambiguous access to any particular information regarding the manufacturing processes known per se was possible which made these processes available to the public within the meaning of Art. 54(2) EPC 1973, whether or not there was any reason to look or ask for such information.

In T 2068/15 (chemical composition – analysability), the board considered in the case at issue that the skilled person analysing the film with the techniques known at that time (electron microscopy) would not have overlooked the first top layer. And the board stated also that it was common practice at the priority date of the patent to apply more than one analytical method in order to obtain information about the composition of a material.

In T 1409/16 the board decided that commercial composition only accessible by subjecting said prior art composition to a kind of **reverse engineering** (by fractionation) based on hindsight revealed "extrinsic characteristic" within the meaning of G 1/92 (see also similar case T 834/15).

In T 1452/16 (alleged prior use of Amano lactase) the board stated that in order to assess whether a prior-art product falls within the terms of the claim, one obviously has to assess the claimed parameters, even if these have never been used before. Furthermore, the board explained in detail why the present cases differed from T 946/04, T 1457/09, T 2048/12 and T 2068/15. Contrary to the patent proprietor's arguments, the board noted firstly that T 952/92 did not stipulate that structural assays had to be used, and second that the skilled person did not have to test for all possible impurities. As to reproducibility, T 952/92 also clarified that no complete reproducibility was needed. The board came to the conclusion that the evidence on file convincingly demonstrated that a lactase preparation fulfilling the parameters (given ratio) recited in claim 1 of the main request was publicly available, that an **enzyme** with the characteristics as claimed was commercially available in the prior art and that its use in a process as claimed had also been made available to a member of the public, and hence was state of the art.

(ii) Structure or composition not made available to the public

In T 461/88 (OJ 1993, 295) the board ruled that a control program stored on a microchip had not been made available to the public if the analysis of the program would require an expenditure of effort on a scale which could only be reckoned in man-years and if, for economic reasons, it was highly improbable that the sole purchaser of the machine controlled by the program had carried out such an analysis (see obiter dictum in T 969/90, see also T 212/99).

In T 472/92 (OJ 1998, 161) the board referred to G 1/92 and concluded that the printability characteristic of the material was not a property that became available to the public by their mere delivery, since this was clearly an extrinsic characteristic requiring interaction with specifically chosen outside conditions. Thus, such characteristic could not be considered as already having been made available to the public (see also T 267/92).

The board in T 1217/01 found that, since the perming product allegedly in prior use was a fast-moving consumer good, it could be presumed that it had gone on sale, and so been publicly available, soon after payment of the invoice the appellant (opponent) had adduced as supporting evidence. For the board, the case turned on the composition of the oxidising agent (fixer) in the invoiced product. But, as no product or even packaging dating from the time was available, its exact composition could be deduced only by "**reverse reasoning**", working back from the process of its elaboration and production. The board ultimately found that the evidence was not conclusive enough; owing especially to changes in the product names and numbers, it had not been shown that the sold product had also been made of the claimed composition.

In T 2048/12 the board stated that opinion G 1/92 did not imply that in each and every case the commercial availability of a chemical product as such necessarily amounted to a disclosure of (also) all the impurities contained therein merely because it was possible to identify and quantify these impurities by analytical means. Conclusion 1 of G 1/92 was to be read by attributing a technically reasonable meaning to the technical expression "chemical composition". In the present case there was no direct or indirect pointer to the possible technical relevance of further impurities (besides water) in the commercial product.

T 1833/14 dealt with the **condition of reproducibility** laid down in G 1/92. It could not be concluded that the skilled person was able to reproduce the product Rigidex®P450xHP60 without undue burden. In order to be part of the prior art pursuant to Art. 54(2) EPC, a public prior use must amount to an enabling disclosure (T 977/93, OJ 2001, 84; T 370/02, T 2045/09, T 23/11 and T 301/94). It is generally known in the field of polymers that the **nature of the catalyst system**, the type of reacting system and the process conditions significantly affect the properties of the produced polymer. In the polymer field, in which products and compositions are often defined by means of parameters, the requirements of sufficiency of disclosure is analysed with particular care and the same criteria must apply to the reproducibility without undue burden of a product on the market. In order for the product to be state of the art, the question was whether or not the skilled person would have been in a position to prepare the product as such, i.e. a sample identical to Rigidex®P450xHP60 in all its properties (not only those specified in claim 1). This was however not shown by the appellant (opponent). To the contrary, the appellant stated that "what may be more difficult (if the catalyst used for the original product is not known) is obtaining the same mechanical properties as the Rigidex product". T 1833/14 cited by T 842/14 in connection with Art. 83 EPC.

In T 1666/16 (powders – angle of repose), the board could not conclude that the skilled person was able to determine the internal structure of the sold products and to reproduce them without undue burden at the date of their sale; the internal structure of these products

did not form part of the prior art. The issue of extrinsic characteristics in view of G 1/92 was also at stake.

3.2.5 Biological material

In the field of microbiology, the board, in T 576/91, conceded that an unwritten rule may exist within the scientific community, whereby biological material referred to in a scientific publication can be freely exchanged. However, this does not amount to an obligation, so that any biological material which is the subject of a publication can be considered as being publicly available. The board further stated that if contractual obligations between parties resulted in access to biological material being deliberately restricted to a group of persons bound either by a research contract or a licence, it could not be concluded that this material had been made "available to the public" within the meaning of Art. 54(2) EPC 1973 (see also T 351/98). In T 128/92 the board stated that, for a complex biochemical to be made available to the public, the minimum that would seem to be required for publication was a notice to those in the field that samples of the biochemical could be obtained on request, and clear evidence of exactly what the biochemical was.

3.3. The concept of "the public"

The boards considered the concept of "the public" in several decisions. According to their case law, information is generally to be regarded as having been made public if even just one single member of the public is in a position to gain access to it and understand it, and if there is no obligation to maintain secrecy (T 1081/01, T 229/06, T 1510/06, T 1309/07, T 2/09, T 834/09, T 1168/09, T 239/16).

In T 1829/06 the board stated that, according to established jurisprudence, information was considered to be made available to the public even if only one member of the public had access to it and there was no bar of confidentiality restricting the use or dissemination of such information. The fact that this member of the public acted as a straw man or that the opponent itself could have had difficulties in obtaining the article was immaterial.

3.3.1 Sale to a single customer

According to the established legal practice a single sale was sufficient to render the article sold available to the public within the meaning of Art. 54(2) EPC 1973 provided the buyer was not bound by an obligation to maintain secrecy. It was not necessary to prove that others also had knowledge of the relevant article (T 482/89, OJ 1992, 646, see also T 327/91, T 462/91, T 301/94 and T 783/12).

The sale of an object to a single customer who is not obliged to maintain secrecy renders the invention public, even where the object is to be used in a **prototype**, which is itself to be kept confidential until it is mass-produced (T 1022/99).

If a product can be analysed, its composition also becomes public on its sale to a third party (T 897/07).

3.3.2 Making available to a person not skilled in the art

In T 953/90 and T 969/90 the boards pointed out that information has been made public even if the sale was made to a person not skilled in the art.

In T 809/95 the patentee justified its position on non-disclosure essentially on the ground that the test persons were not skilled in the art. It cited T 877/90. The board noted that the latter decision dealt with information made public by oral disclosure at a lecture. Public disclosure was there linked to the condition that the audience had to include skilled persons capable of understanding the lecture. Such considerations seem appropriate to an oral disclosure but are not transferable to the case of information made public by making an article available for free use.

3.3.3 A limited circle of people

According to the case law of the boards of appeal the information is publicly available where it was made available to a limited circle of people (T 877/90 – congress; T 228/91 – course; T 292/93 – demonstration for potential customers conducted on the premises of a company with close links to the opponent). Whether or not a member of the public has actually accessed the information is irrelevant (see T 84/83). In T 877/90 an oral disclosure was regarded as made available to the public if, at the relevant date, it was possible for members of the public to gain knowledge of the content of the disclosure and there was no bar of confidentiality restricting the use or dissemination of such knowledge war (see also T 300/86 on a written description and T 443/09 on public prior use).

According to T 165/96 which concerned the public availability of technical information drafted in Danish and disclosed in an insert in a minor small-ads newspaper (circulation: 24,000) distributed in the suburbs of Copenhagen, the "public" within the meaning of Art. 54(2) EPC 1973 did not presuppose a minimum number of people or specific language skills or educational qualifications. It followed that the residents of a Copenhagen suburb were held to represent the public.

In T 1085/92 the board ruled that a company's own staff could not normally be equated with "the public" within the meaning of Art. 54(2) EPC 1973 (see also T 1464/05, T 1057/09).

In T 1081/01 the board observed that if, at the time of receipt of the information, the recipient was in **some special relationship to the donor** of the information, he could not be treated as a member of the public, and the information could not be regarded as published for the purpose of Art. 54 EPC 1973. Even if this special relationship were later to cease, so that the recipient was now free to pass on the information, the mere cessation of the special relationship did not make the information available to anyone else (see also T 1057/09, with respect to a diploma thesis).

In T 398/90 a marine engine installed in a ship was held to have been known to the engine room crew and hence to have been made available to the public.

In **T. 313/05** the respondents asserted that document D30 had been made available to the public at an international workshop. The board came to the conclusion that the public availability of document D30 before the priority date of the patent in suit could only be regarded as established if, in view of the evidence, it had no reasonable doubt in this respect. This requirement was not met (see also **T. 1335/05**).

3.3.4 Public library

In **T. 834/09** the board stated that the person in charge of the reception and date stamping of an incoming document at a public library is without any doubt a member of the public as this staff member is in no way bound by any obligation to maintain secrecy about the publications he/she handles and the content thereof, and after all, his/her very function as a staff member of a public library is to make information available to the public. The board went on to state that in the case of a written disclosure it is irrelevant whether the staff member is a person skilled in the art or not, because the content of a written disclosure can be freely reproduced and distributed even without understanding it. Thus the board held that the reception and date stamping of an incoming document by a staff member of a public library makes the document available to the public.

In **T. 314/99** it was undisputed that the **diploma thesis** arrived in the archive of the Chemistry Department Library of the University of Hamburg before the priority date. However, in the board's judgment, the diploma thesis did not by its mere arrival in the archive become publicly available, since that did not mean it was as of that point in time catalogued or otherwise prepared for the public to acquire knowledge of it, and because without such means of information the public would remain unaware of its existence.

In **T. 1137/97** the board stated that the strength of the presumption in favour of the accuracy of a "Received" date marking appearing on the copy of a journal in a library as evidence of the actual date when the journal was made available to the public would depend on the library routine used. The board did not accept a handwritten date on the cover of a journal in view of other evidence.

In **T. 729/91** one relevant document was an issue of a periodical intended for hoteliers and caterers. In accordance with the evidence brought forward in the case, a copy of this periodical was received by a particular library, i.e. before the priority date of the patent in suit. The librarian stated that publications were "generally available to the public as of the date of receipt". In the present case, it was, in the board's view, likely that the publication was available as from the date of receipt.

In **T. 1050/12** the question of availability to the public of meeting **abstracts of presentations for a future conference** published in a supplement to a regular volume of a scientific journal was disputed. There was corroborating evidence in the form of date-stamped copies for the dates of receipt and/or cataloguing, and the board had no reason to doubt the usual routines described by librarians in their declarations. On the contrary there was no evidence on file supporting the allegations of the respondent (patent proprietor) that the journal supplement was not to be disseminated freely. The board did not agree that the conclusions of **T. 834/09** contradicted the earlier jurisprudence and